

IN THE FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
AT NEWCASTLE
(DIVISION 2)

No. NCC3896 of 2023

BETWEEN

HEATHER ANNE COOKE

Applicant Wife

and

STEPHEN CHRISTOPHER COOKE

Respondent Husband

**APPLICANT WIFE'S TENDER BUNDLE -
AFFIDAVIT FILED 31 MAY 2024**

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Message 1 of 1

Sent: 04/17/2024 at 05:03 PM
From: Stephen Cooke
To: Heather Cooke (*First Viewed: 04/17/2024 at 05:07 PM*)
Subject: Re: Orders

Hi Heather,

I've selected 2) Tony Robinson / Michael Flook-Robinsons property. Tony is away until Sunday, Michael is available to chat in the interim. I've talked with both.

The home needs some work. What I like about the Robinsons is their familiarity with the property and due to their size, they also have their tradie network at their disposal (or so I have been told).

Kind regards,

Stephen

On 04/12/2024 at 03:55 PM, Heather Cooke wrote:

To: Stephen Cooke (*First Viewed: 04/12/2024 at 04:03 PM*)
Subject: Re: Orders

Hi

Can I confirm you remain unemployed and I'll organise a transfer?

These are all excellent choices. I'll speak with whomever you pick.

Thanks

On 04/12/2024 at 03:31 PM, Stephen Cooke wrote:

To: Heather Cooke (*First Viewed: 04/12/2024 at 03:53 PM*)
Subject: Re: Orders

Hi Heather,

Banking is:
Westpac Choice
732-501 Account number: 653193

What interactions have you had with the real estate agents so far, if any? Do you have a preference? I just finished talking to Simon, who filled me in on his previous involvement in the sale of the neighboring property.

Google Maps:

- 1) Lyndal Allan - Salt property: 53 Reviews
- 2) Michael Flook -Robinsons property: 1k+ Reviews
- 3) Simon Wall - Simon Wall property: 49 Reviews

Stephen

On 04/11/2024 at 07:03 PM, Heather Cooke wrote:

To: Stephen Cooke (*First Viewed: 04/11/2024 at 07:30 PM*)

Subject: Orders

Hi,

Can you please let me know details for your spousal maintenance?

The 3 agents I'd like to suggest for sale of Morgan are

- 1) Lyndal Allan - Salt property
- 2) Michael Flook -Robinsons property
- 3) Simon Wall - Simon Wall property

Thanks

Anna Roberts

From: Anna Roberts
Sent: Monday, 13 May 2024 7:10 PM
To: Anna Roberts
Subject: FW: Painting Quote - 1/213 Morgan St, Merewether

----- Forwarded message -----

From: Mike Flook <Mike@robinsonre.com.au>
Date: Wed, 1 May 2024, 5:47 pm
Subject: Re: Painting Quote - 1/213 Morgan St, Merewether
To: Heather Cooke <heather111cooke@gmail.com>

Leave that with me, the majority of the works are inside including the entrance and sections of the ceiling where speakers have been removed along with some touch ups here and there. With regards to the entrance the painter and I thought it was best to paint all walls to freshen it up given it's the first section of the home you see and just painting the wall where the damage is would stand out. I met my handy man there at 8.50am today and reminded stephen about the same yesterday however he slept in and didnt hear us. Must be a very heavy sleeper. Handyman went back later. My main concern for you in the cleanliness of the property and I don't believe he will be able to do it which is odd given he wants top dollar. I think professional cleaners are needed.. Talk soon
Sent from my iPhone



Westpac Choice

Transactions



Search by name, date, amount



Filter

Mon 20 May 2024

Pay TV & Telephone



PAYMENT BY AUTHORITY
TO BT Life Insuranc
YF984289 734-676

Income Protection

-\$361.20

bal \$145,204.16



WITHDRAWAL-OSKO
PAYMENT 1247803
Miomon Investment Pty Ltd

Online Withdrawal

-\$75.00

bal \$145,565.36



WITHDRAWAL-OSKO
PAYMENT 1154967 Caslick
Coatings Pty Ltd 19 MAY ...

Online Withdrawal

-\$550.00

bal \$145,640.36



DEPOSIT MCARE BENEFITS
210017455 AYWQ

Healthcare & Medical

\$80.45

bal \$146,190.36

Fri 17 May 2024



PAYMENT BY AUTHORITY
TO WESTPAC BANKCORP
DIRECT DR173216802

Mortgages

-\$1,290.50

bal \$146,109.91

----- Forwarded message -----

From: **Mike Flook** <Mike@robinsonre.com.au>
Date: Tue, May 28, 2024 at 1:05 PM
Subject: Re: 1/213 Morgan St Merewether
To: Heather Cooke <heather111cooke@gmail.com>

No he cancelled them. Told me he was happy with how clean it was
Sent from my iPhone

On 28 May 2024, at 11:05 AM, Heather Cooke <heather111cooke@gmail.com> wrote:

Hi,
I hate to ask did he let the cleaner in?
Thanks
Heather

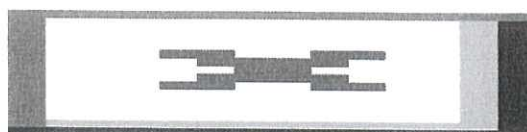
On Sat, 25 May 2024, 9:31 am Mike Flook, <Mike@robinsonre.com.au> wrote:

He just rang me.. He still thinks more works need to be done on the property including the external painting, which I told him would take weeks to get done and he doesn't have that type of time. I suggested he stays with the programme and allows the cleaner in on Tuesday and the photos on Wednesday.. He wants to speak with his lawyer again on Monday.

Mike Flook | Licensed Real Estate Agent

M 0438 770 426 | D (02) 4902 7221





2014-2023 – 9 years ranked as Merewether's #1 Agent

See my work – <https://www.ratemyagent.com.au/real-estate-agent/michael-flook-bi689/sales/overview>

From: Heather Cooke <heather111cooke@gmail.com>

Sent: Saturday, May 25, 2024 8:28 AM

To: Mike Flook <Mike@robinsonre.com.au>

Subject: Re: FW: 1/213 Morgan St Merewether

Hi,

Again I'm so sorry to you and all the team for Stephen's behaviour.

I'll send all through to my solicitors today and see what advice there is.

Thanks

Heather

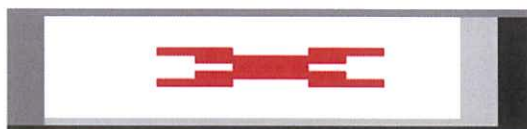
On Sat, 25 May 2024, 8:17 am Mike Flook, <Mike@robinsonre.com.au> wrote:

His not returning calls

Mike Flook | Licensed Real Estate Agent

M 0438 770 426 | D (02) 4902 7221





2014-2023 – 9 years ranked as Merewether's #1 Agent

See my work – <https://www.ratemyagent.com.au/real-estate-agent/michael-flook-bi689/sales/overview>

From: photopromo1 <photopromo1@gmail.com>
Sent: Friday, May 24, 2024 10:39 AM
To: Mike Flook <Mike@robinsonre.com.au>
Cc: Carlie McDonald <carlie@robinsonre.com.au>; missspelling2@bigpond.com
Subject: Re: 1/213 Morgan St Merewether

Yes, will do.

I have left several messages.

On Fri, 24 May 2024 at 10:36 AM, Mike Flook <Mike@robinsonre.com.au> wrote:

Dean can you please call stephen re photos here for next Wednesday. You may still have the drone footage from when Yony previously had it on the market otherwise we will need those to. This is a seperation so please tread carefully. His a little all over the shop. Cleaners are there on Tuesday. His mobile is 0412846712, thanks
Sent from my iPhone

<image001.png>
<image002.png>
<image003.png>
<image004.png>
<image001.png>

From: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Sent: Wed, 29 May 2024 09:37:33 +1000
To: Anna Roberts
Cc: Olivia Shedden
Subject: Cooke & Cooke - Family Law Matter
Attachments: Joint letter to single expert valuer - Ms Jeni Rumble - 703 1 Como Crescent Southport.pdf, 20240528_145348.jpg, 20240528_145405.jpg, 20240528_145336.jpg, 20240528_145411.jpg, Fwd_ Property Proposal - 1_213 Morgan Street, Merewether.pdf
Categories: LEAP

Dear Colleagues

Southport valuation

We attach your joint letter signed by the writer. Would you like to send it to the valuer?

Sale of home

Stephen has removed the waste. See photos attached.

If your client prefers to use Robinson Real Estate (rather than Salt being another suggested by your client) Stephen would like work recommended by Salt to be done before the listing for sale. We attach an email from Salt that addresses this. That work is:

- Painting and the exterior of the home needs attention with painting, and repair of some rotting. Stephen discussed this with Mr Flook who said he would speak with someone about this.
- Staging (or styling) of front balcony and adjacent room.

Mr Flook advised he would prepare a quote.

The above work could be done prior to the court ordered date for listing of 11 July. Stephen asks that Heather pay any upfront costs of painting and styling with one half of such amounts to be reimbursed to Heather from Stephen's share of the sale proceeds.

Home loan

We note your comments about the fixed loan coming to an end. It is only one of three loans. Is it proposed to cease payments on all three loans? Stephen requires that your client meet her obligations under the Orders and continue making all payments.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



T: 1300 749 709 | W: ramsdenfamilylaw.com.au
A: Level 6, 15 Castlereagh Street, Sydney NSW 2000



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PERSPECTIVE



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